APPEAL,CONSENT,IFP,TERMINATED

U.S. District Court
District of Oregon (Portland (3))
CIVIL DOCKET FOR CASE #: 3:24-cv-00839-SB

Lofall v. Clackamas County et al
Assigned to: Magistrate Judge Stacie F. Beckerman
Demand: $2,491,000
Case in other court: Ninth Circuit Court of Appeals, 25-06461
Cause: 42:1983 Civil Rights Act

Date Filed: 05/23/2024
Date Terminated: 09/03/2025
Jury Demand: Plaintiff
Nature of Suit: 380 Other Personal Property Damage
Jurisdiction: Federal Question

Plaintiff

Tyler Allen Lofall represented by **Tyler Allen Lofall**
6880 NW 271st Ave.
Hillsboro, OR 97124
386-262-3322
Email: tyleralofall@gmail.com
PRO SE

V.

Defendant

State of Oregon
TERMINATED: 09/09/2024

Defendant

Clackamas County represented by **Shawn A. Lillegren**
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LEAD ATTORNEY
ATTORNEY TO BE NOTICED

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ATTORNEY TO BE NOTICED

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Defendant

Clackamas County Sheriff Office represented by **Shawn A. Lillegren**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant

Clackamas County Officer John Doe 1

Defendant

Officer John Doe 2

Defendant

West Linn Police Department represented by **Amanda J. Rockett**
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TERMINATED: 06/13/2025

Defendant

Officer Dana Gunnarson represented by **Amanda J. Rockett**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Lauren E Nweze
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

David C. Lewis
(See above for address)
TERMINATED: 06/13/2025

Defendant

Officer Catlin Blyth represented by **Amanda J. Rockett**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Lauren E Nweze
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

David C. Lewis
(See above for address)
TERMINATED: 06/13/2025

Defendant

Clackamas County Jail represented by **Shawn A. Lillegren**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant

Deputy District Attorney Rebecca Portlock represented by **Michelle Enfield**
Oregon Department of Justice
Civil Litigation Section
1162 Court Street NE
Salem, OR 97301
503-947-4700
Email: michelle.enfield@doj.oregon.gov
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
05/23/2024	1	Application for Leave to Proceed IFP. Filed by Tyler Allen Lofall. (sb) (Entered: 05/24/2024)
05/23/2024	2	Complaint. Jury Trial Requested: Yes. Filed by Tyler Allen Lofall against Clackamas County Police Department, County of Clackamas, John Doe Officer 1, John Doe Officer 2, State of Oregon (Attachments: # 1 Civil Cover Sheet). (sb) (Entered: 05/24/2024)

05/23/2024	3	Application for CM/ECF Registration as a Self-Represented Party. Filed by Tyler Allen Lofall. (sb) (Entered: 05/24/2024)
05/23/2024	4	Motion for Appointment of Counsel. Filed by Tyler Allen Lofall. (sb) (Entered: 05/24/2024)
05/23/2024	5	**Notice of Case Assignment:** This case is assigned to Magistrate Judge Stacie F. Beckerman. *(Deposited in outgoing mail to pro se party on 5/24/24.)* (sb) (Entered: 05/24/2024)
05/29/2024	6	**ORDER:** Granting Application of Tyler Allen Lofall for CM/ECF Registration as a Self-Represented Party (ECF No. 3). Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 05/29/2024)
06/10/2024	7	**ORDER.** The Court GRANTS Lofall's application for leave to proceed *in forma pauperis* (ECF No. 1) but the Clerk should not yet issue process because the Court ORDERS Lofall to show cause in writing on or before July 8, 2024, why the Court should not dismiss his complaint for failure to state a claim. Alternatively, Lofall may file an amended complaint by July 8, 2024, curing the deficiencies identified herein. The Court DENIES Lofall's motion for appointment of counsel. (ECF No. 4 .) Signed on 6/10/2024 by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 06/10/2024)
07/09/2024	8	Response to Order to Show Cause (ECF No. 7). ORAL ARGUMENT requested. Filed by Tyler Allen Lofall. (Lofall, Tyler) *Modified docket text on 7/9/2024* (gw). (Entered: 07/09/2024)
07/15/2024	9	**FINDINGS AND RECOMMENDATION:** For the reasons stated, the Court recommends that the district judge DISMISS Lofall's claims against the State of Oregon with prejudice and DISMISS the remainder of Lofall's claims with leave to amend within thirty days. Objections to the Findings and Recommendation are due by 7/29/2024. Signed on 7/15/2024 by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 07/15/2024)
07/15/2024	10	**ORDER** referring Findings and Recommendation: (ECF No. 9) and Complaint (ECF No. 2) to Judge Hernandez. Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 07/15/2024)
07/29/2024	11	Response in Opposition to **Findings & Recommendation:** Complaint 2 9 Oral Argument requested. Filed by Tyler Allen Lofall. (Lofall, Tyler) (Entered: 07/29/2024)
08/07/2024	12	**ORDER:** The Court adopts Magistrate Judge Beckerman's Findings and Recommendation 9 . Therefore, the Court DISMISSES Plaintiff's claims against the State of Oregon with prejudice and DISMISSES Plaintiff's claims against the remaining Defendants without prejudice. Plaintiff has leave to amend the claims against Clackamas County, the Clackamas County Police Department, and John Doe Officers 1 and 2 within 30 days. IT IS SO ORDERED. Signed on 8/7/2024 by Judge Marco A. Hernandez. (gw) (Entered: 08/07/2024)
09/09/2024	13	First Amended Complaint *to both the Order/show cause and*. Filed by Tyler Allen Lofall against All Defendants (Attachments: # 1 Exhibit my keeps getting denied if ianything is linked or even if its not linked., # 2 Exhibit I have also had a tremendous list denied, and ive made several beautiful complaints and i cant enter into th federal building you denied it by mail I will be attaching a notice next but it will be tonight., # 3 Civil Cover Sheet here is my evidence my documents were just getting refused... the last two filings.. seem ably for no reason. Constitutional rights and federal laws, cannot be superseeded my procedural difficulties whent he difficulties arise from the harms causes from the defendants.). (Lofall, Tyler) (Entered: 09/09/2024)

09/12/2024	14	Notice re Amended Complaint,,, 13 Filed by Tyler Allen Lofall. (Related document(s): Amended Complaint,,, 13 .) (Lofall, Tyler) (Entered: 09/12/2024)
09/23/2024	15	Exhibits to Amended Complaint (ECF No. 13). Filed by Tyler Allen Lofall against Clackamas County Police Department, County of Clackamas, John Doe Officer 1, John Doe Officer 2 (Attachments: # 1 Index this is to my amended complaint, with my evidence more neatly organized with links, # 2 Proposed Document, # 3 Proposed Document). (Lofall, Tyler) *Modified on 9/24/2024 to correct description.* (gw). (Entered: 09/23/2024)
09/24/2024	16	**ORDER:** Plaintiff filed his first amended complaint (ECF No. 13) and later filed exhibits to the first amended complaint (ECF No. 15). The Court will perform a preliminary screening of the first amended complaint (along with its exhibits) and dismiss any claims that fail to state a claim upon which relief may be granted, are frivolous or malicious, or seek monetary relief against a defendant who is immune from such relief. *See* 28 U.S.C. § 1915(e)(2)(B). Plaintiff shall not further amend his complaint, nor file any additional documents in support of the first amended complaint, without leave of court. Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 09/24/2024)
10/09/2024	17	Second Amended Complaint . Filed by Tyler Allen Lofall against Tyler Allen Lofall (Attachments: # 1 well my ADA proof wont go through so i dont know what to do. but this hopefully way more clear than before, I recieved file errors and couldnt even have time to read my amended complaint before it was due and programming took out all my numbers on the body of my document messing up all the dates. this is corrected and way easier to follow. the exhibit list is already submitted., # 2 clause to exhibit to paragraph). (Lofall, Tyler) (Entered: 10/09/2024)
10/10/2024	18	**ORDER.** The Court acknowledges Plaintiff's Second Amended Complaint (ECF No. 17). The Court will perform a preliminary screening of the Second Amended Complaint (along with its attachments) and dismiss any claims that fail to state a claim upon which relief may be granted, are frivolous or malicious, or seek monetary relief against a defendant who is immune from such relief. *See* 28 U.S.C. § 1915(e)(2)(B). Plaintiff shall not further amend his complaint, nor file any additional documents in support of the Second Amended Complaint, without leave of court. Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 10/10/2024)
02/03/2025	19	**Notice of Lawsuit and Request for Waiver of Service of Summons** to Clackamas County Counsel. Waiver of Service is due by 3/5/2025. Signed on 2/3/2025 by Magistrate Judge Stacie F. Beckerman. *(Mailed and e-mailed Notice and Second Amended Complaint to Clackamas County Counsel Jane Vetto on 2/3/2025.)* (gw) (Entered: 02/03/2025)
02/03/2025	20	**Notice of Lawsuit and Request for Waiver of Service of Summons** to West Linn City Attorney. Waiver of Service is due by 3/5/2025. Signed on 2/3/2025 by Magistrate Judge Stacie F. Beckerman. *(Mailed and e-mailed Notice and Second Amended Complaint to West Linn City Attorney Kaylie Klein on 2/3/2025.)* (gw) (Entered: 02/03/2025)
02/07/2025	21	Plaintiff's Motion for Guidance for a Stay of Pending State Court Proceedings and for Equitable Tolling of State Claims Due to Systemic Corruption. Filed by Tyler Allen Lofall. (Attachments: # 1 Exhibit Simply my Conferral, # 2 Proposed Order) (Lofall, Tyler) *Modified docket text on 2/7/2025* (gw). (Entered: 02/07/2025)
03/05/2025	22	Waiver of Service of Summons Returned Executed by Deputy District Attorney Rebecca Portlock waiver sent on 3/5/2025. *to Second Amended Complaint* Filed by Deputy District Attorney Rebecca Portlock. (Enfield, Michelle) (Entered: 03/05/2025)
03/05/2025	23	Waiver of Service of Summons Returned Executed Filed by Dana Gunnarson, West Linn Police Department, Catlin Blyth. (Lewis, David) (Entered: 03/05/2025)

03/05/2025	24	Waiver *of Service Form*. Filed by Clackamas County, Clackamas County Sheriff Office, Clackamas County Jail. (Lillegren, Shawn) (Entered: 03/05/2025)
03/20/2025	25	Notice of Association of Attorney of Jonathan David Ballard appearing on behalf of Clackamas County . Filed by on behalf of Clackamas County. (Ballard, Jonathan) (Entered: 03/20/2025)
03/21/2025	26	Unopposed Motion for Extension of Time to Answer Amended Complaint,, 17 . Filed by West Linn Police Department, Dana Gunnarson, Catlin Blyth. (Lewis, David) (Entered: 03/21/2025)
03/24/2025	27	**ORDER:** Granting Defendants West Linn Police Department, Officer Dana Gunnarson and Officer Catlin Blyth's Unopposed Motion for Extension of Time (ECF No. 26). Answer or other responsive pleading to Plaintiff's Second Amended Complaint (ECF No. 17) is due by 5/2/2025. Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 03/24/2025)
03/28/2025	28	Notice of Association of Attorney of Daniel M. McMillin appearing on behalf of Clackamas County . Filed by on behalf of Clackamas County. (McMillin, Daniel) (Entered: 03/28/2025)
03/28/2025	29	**ORDER** denying as moot Plaintiff's Motion for Guidance for a Stay of Pending State Court Proceedings (ECF No. 21), because the state court docket reflects that the state court has now dismissed without prejudice Plaintiff's related state court action (Clackamas County Circuit Court Case No. 22CV39627). Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 03/28/2025)
03/31/2025	30	Motion for Extension of Time to Answer Amended Complaint,, 17 . Filed by Clackamas County Jail, Clackamas County, Clackamas County Sheriff Office. (Lillegren, Shawn) (Entered: 03/31/2025)
03/31/2025	31	**ORDER:** Granting Defendants Clackamas County, Clackamas County Sheriff's Office, and Clackamas County Jail's Motion for Extension of Time (ECF No. 30). Answer or other responsive pleading to Plaintiff's Second Amended Complaint (ECF No. 17) is due by 5/2/2025. Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 03/31/2025)
04/02/2025	32	Motion for Extension of Time to Answer Amended Complaint,, 17 . Filed by Deputy District Attorney Rebecca Portlock. (Enfield, Michelle) (Entered: 04/02/2025)
04/02/2025	33	**ORDER:** Granting Defendant Rebecca Portlock's Motion for Extension of Time (ECF No. 32). Answer or other responsive pleading to Plaintiff's Second Amended Complaint (ECF No. 17) is due by 5/2/2025. Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 04/02/2025)
05/01/2025	34	Motion to Dismiss . Filed by Clackamas County Jail, Clackamas County, Clackamas County Sheriff Office. (Lillegren, Shawn) (Entered: 05/01/2025)
05/01/2025	35	Declaration of Shawn Lillegren . Filed by Clackamas County, Clackamas County Jail, Clackamas County Sheriff Office. (Related document(s): Motion to Dismiss 34 .) (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Exhibit, # 10 Exhibit, # 11 Exhibit, # 12 Exhibit, # 13 Exhibit, # 14 Exhibit, # 15 Exhibit) (Lillegren, Shawn) (Entered: 05/01/2025)
05/02/2025	36	Motion to Dismiss for Failure to State a Claim . Filed by West Linn Police Department, Dana Gunnarson, Catlin Blyth. (Nweze, Lauren) (Entered: 05/02/2025)

05/02/2025	37	Motion to Dismiss . Filed by Deputy District Attorney Rebecca Portlock. (Enfield, Michelle) (Entered: 05/02/2025)
05/18/2025	38	Counter Memorandum in Support *Plaintiff Oppositons to motions To dismiss (doc34, 36, 37)*. Filed by Tyler Allen Lofall. (Related document(s): Amended Complaint,, 17 , Amended Complaint,,, 13 , Amended Complaint, 15 .) (Attachments: # 1 Attachment This declaration was attached to The Second Amended complaint, but i think the courts took the attachments (exhibits including the Declaration Narrative attached here)) (Lofall, Tyler) (Entered: 05/18/2025)
05/19/2025	39	**ORDER:** The Court acknowledges Plaintiff's Opposition to Defendants' Motions to Dismiss (ECF No. 38). The Court interprets Plaintiff's filing to include a motion to file excess pages regarding Plaintiff's response to Defendants' motions to dismiss and grants that motion. The Court further interprets Plaintiff's filing as including responses to each of Defendants' pending motions to dismiss (ECF Nos. 34 , 36 , 37). Defendants may file replies by June 2, 2025. *See* LR 7-1(e) ("A party must file and serve any allowable reply to the response within 14 days after service of the response.") Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 05/19/2025)
05/19/2025	40	Motion for Leave to File Over-Length Consolidated Opposition to Motions to Dismiss. Filed by Tyler Allen Lofall. (dino) (Entered: 05/19/2025)
05/20/2025	41	**ORDER** denying as moot Plaintiff's Motion for Leave to File Over-Length Consolidated Opposition to Motions to Dismiss (ECF No. 40) because the Court already granted Plaintiff leave to file an over-length opposition (*see* ECF No. 39). Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 05/20/2025)
06/02/2025	42	Reply to Motion to Dismiss 34 . Filed by Clackamas County, Clackamas County Jail, Clackamas County Sheriff Office. (Lillegren, Shawn) (Entered: 06/02/2025)
06/02/2025	43	Reply to Motion to Dismiss 37 . Filed by Deputy District Attorney Rebecca Portlock. (Enfield, Michelle) (Entered: 06/02/2025)
06/02/2025	44	Reply to Motion to Dismiss for Failure to State a Claim 36 . Filed by Catlin Blyth, Dana Gunnarson, West Linn Police Department. (Nweze, Lauren) (Entered: 06/02/2025)
06/03/2025	45	**ORDER.** Taking under advisement as of June 2, 2025: (1) the Motion to Dismiss filed by Clackamas County Jail, Clackamas County, and Clackamas County Sheriff Office (ECF No. 34), (2) the Motion to Dismiss for Failure to State a Claim filed by West Linn Police Department, Dana Gunnarson, and Catlin Blyth (ECF No. 36), and (3) the Motion to Dismiss filed by Deputy District Attorney Rebecca Portlock (ECF No. 37). Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 06/03/2025)
06/03/2025	46	**NOTICE BY THE CLERK:** Currently there is no consent to proceed before a U.S. Magistrate Judge in this case. If any party would like to consent to proceed before a U.S. Magistrate Judge, the consent form may be found attached to this docket entry or on the court's website at ord.uscourts.gov/civil-forms. It may be filed electronically by using the Consent event under Other Filings/Consent in the Civil menu or delivered to the Clerk's Office by mail or in person. For more information regarding the role of magistrate judges and consenting to magistrate judge jurisdiction, see ord.uscourts.gov/consent. The parties are free to withhold consent without adverse substantive consequences. Consent to Jurisdiction by a Magistrate Judge, if any, is to be filed by **June 24, 2025.** (gw) (Entered: 06/03/2025)
06/03/2025	47	Individual Party Consent to Jurisdiction by U.S. Magistrate Judge. (Entered: 06/03/2025)
06/03/2025	48	Individual Party Consent to Jurisdiction by U.S. Magistrate Judge. (Entered: 06/03/2025)

06/09/2025	49	Individual Party Consent to Jurisdiction by U.S. Magistrate Judge. (Entered: 06/09/2025)
06/10/2025	50	Consent Motion for Leave *Plaintiff Oppositons to motions To dismiss (doc34, 36, 37)*. Oral Argument requested. Filed by Tyler Allen Lofall. (Attachments: # 1 Attachment, # 2 Exhibit Im really sorry about any imperfections my computer is giving me a lot of poblem..., # 3 Proposed Order) (Lofall, Tyler) (Entered: 06/10/2025)
06/10/2025	51	Individual Party Consent to Jurisdiction by U.S. Magistrate Judge. (Entered: 06/10/2025)
06/10/2025	52	Full Consent by all Parties to Jurisdiction by U.S. Magistrate Judge. (gw) (Entered: 06/10/2025)
06/11/2025	53	**ORDER:** The Court acknowledges Plaintiff's Motion for Leave to File a Sur-Reply (ECF No. 50). The Court will accept the filing but warns Plaintiff that the Court will not accept any additional documents that Plaintiff files in opposition to Defendants' motions to dismiss. *See* LR 7-1(e)(3) (providing that a plaintiff may file a response, but that "[u]nless directed by the Court, no further briefing is allowed"); *Barker v. BSI Fin.,* No. 6:18-cv-01854-AA, 2019 WL 4605569, at *4 (D. Or. Sept. 23, 2019) ("Sur-replies are not allowed by the Federal Rules of Civil Procedure and Local Rule 7-1(e)(3) provides that no further briefing is allowed unless directed by the Court."). Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 06/11/2025)
06/13/2025	54	Notice of Attorney Withdrawal: , Notice of Change of Address. Filed by Catlin Blyth, Dana Gunnarson, West Linn Police Department. (Nweze, Lauren) (Entered: 06/13/2025)
06/13/2025	55	Notice *of Availability* Filed by Catlin Blyth, Dana Gunnarson, West Linn Police Department. (Nweze, Lauren) (Entered: 06/13/2025)
06/18/2025	56	Final Sur-Reply *Plaintiff Oppositons to motions To dismiss (doc34, 36, 37)* to Consent Motion for Leave *Plaintiff Oppositons to motions To dismiss (doc34, 36, 37)* 50 , Reply to Motion 42 , Reply to Motion 43 , Reply to Motion 44 ORAL ARGUMENT requested. Filed by Tyler Allen Lofall. (Lofall, Tyler) (Entered: 06/18/2025)
06/20/2025	57	**ORDER.** The Court's prior order (ECF No. 53) appears to have been unclear, such that Plaintiff interpreted the order as granting leave to file an additional document. In light of the apparent ambiguity, the Court will not strike Plaintiff's sur-reply (ECF No. 56), but will not accept any further documents in opposition to Defendants' motions to dismiss. Defendants need not respond to Plaintiff's sur-reply, and the Court has already taken the pending motions under advisement (ECF No. 45) based on its determination that it is able to resolve the motions without oral argument. Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 06/20/2025)
07/16/2025	58	Notice of Change of Address. Filed by Catlin Blyth, Dana Gunnarson. (Nweze, Lauren) (Entered: 07/16/2025)
08/25/2025	59	Joint Status Report . Filed by Deputy District Attorney Rebecca Portlock. (Enfield, Michelle) (Entered: 08/25/2025)
09/03/2025	60	**OPINION AND ORDER.** For the reasons stated, the Court GRANTS Defendants' motions to dismiss (ECF Nos. 34 , 36 , and 37), and DISMISSES this case for lack of federal subject matter jurisdiction. The Court dismisses the case without prejudice but without further leave to amend. IT IS SO ORDERED. Signed on 9/3/2025 by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 09/03/2025)
09/03/2025	61	**JUDGMENT:** Based on the Court's OPINION AND ORDER, IT IS ADJUDGED that this case is DISMISSED without prejudice but without further leave to amend. IT IS SO ORDERED. Signed on 9/3/2025 by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 09/03/2025)

10/02/2025	62	First Motion for Reconsideration *to both the Order/show cause and* of Judgment 61 . Oral Argument requested.Expedited Hearing requested. Filed by All Plaintiffs. (Attachments: # 1 Proposed Order I was having problems sending my documents yesterday and it was soo close to midnight i sent it uunder the other claim on accident, and im filling a Motion for Erata out now but i want to stop you from passing that on first... and combied my exhibits, and hopiing we could relationship it back to the time i submitteded my document last night under 3:24-838-sb, it was supossed to be this claim.... Ill have a motion to you here really shortly and my exhibits that show my point s i have them all complete..., # 2 Attachment) (Lofall, Tyler) (Entered: 10/02/2025)
10/03/2025	63	**ORDER** denying Plaintiff's motion for reconsideration (ECF No. 62), because Plaintiff has not met the requirements for reconsideration or relief from judgment under Federal Rules of Civil Procedure 59(e) or 60(b). *See Ybarra v. McDaniel,* 656 F.3d 984, 998 (9th Cir. 2011) ("A Rule 59(e) motion may be granted if '(1) the district court is presented with newly discovered evidence, (2) the district court committed clear error or made an initial decision that was manifestly unjust, or (3) there is an intervening change in controlling law.' ") (citation omitted); FED. R. CIV. P. 60(b) ("On motion and just terms, the court may relieve a party or its legal representative from a final judgment, order, or proceeding for the following reasons: (1) mistake, inadvertence, surprise, or excusable neglect; (2) newly discovered evidence that, with reasonable diligence, could not have been discovered in time to move for a new trial under Rule 59(b); (3) fraud (whether previously called intrinsic or extrinsic), misrepresentation, or misconduct by an opposing party; (4) the judgment is void; (5) the judgment has been satisfied, released, or discharged; it is based on an earlier judgment that has been reversed or vacated; or applying it prospectively is no longer equitable; or (6) any other reason that justifies relief."). Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 10/03/2025)
10/08/2025	64	Amended Motion for Judgment *to both the Order/show cause and*. Oral Argument requested.Expedited Hearing requested. Filed by Tyler Allen Lofall. (Attachments: # 1 Proposed Order, # 2 Attachment) (Lofall, Tyler) (Entered: 10/08/2025)
10/08/2025	65	**ORDER** denying Plaintiff's request to consider his October 2, 2025 motion (ECF No. 62) as filed on October 1, 2025, because he timely filed the motion but in the wrong case. (ECF No. 64 .) The Court does not have the discretion to extend Rule 59's 28-day deadline. *See* FED. R. CIV. P. 6 ("A court must not extend the time to act under Rules 50(b) and (d), 52(b), 59(b), (d), and (e), and 60(b)."). However, in light of Plaintiff's self-represented status, the Court also considered his untimely Rule 59(e) motion under Rule 60(b). *See Grandinetti v. Champion Air,* No. 1:12-cv-00528 SOM, 2013 WL 56632, at *1 (D. Haw. Jan. 3, 2013) ("Cognizant that it lacks authority to extend that [Rule 59] deadline and that Plaintiff is proceeding pro se, this court construes the present motion as brought under Rule 60 of the Federal Rules of Civil Procedure."). The Court nevertheless denied the motion (ECF No. 63), and this case is now closed. Ordered by Magistrate Judge Stacie F. Beckerman. (gw) (Entered: 10/08/2025)
10/13/2025	66	Notice of Appeal to the 9th Circuit *(fee waiver status selected (IFP))* . Filed by Tyler Allen Lofall. (Attachments: # 1 Proposed Document, # 2 Supplement declaration in support of notice of appeal, # 3 Proposed Order) (Lofall, Tyler) (Entered: 10/13/2025)
10/14/2025		USCA Case Number and Notice confirming Docketing Record on Appeal re Notice of Appeal, 66 . **Case Appealed to Ninth Circuit Court of Appeals. Case Number 25-6461 assigned.** (dino) (Entered: 10/16/2025)
10/16/2025	67	Lodged Notice of Appeal to the 9th Circuit from Order on motion for reconsideration,,,,, 63 , Judgment 61 , Order on Motion for Judgment,,,, 65 *(fee waiver status selected (IFP)) to both the Order/show cause and*. Filed by Tyler Allen Lofall. (Attachments: # 1 Proposed Document I have attached on the main document issues that i have had had this entire time,

		If i need to drive 300 miles to submit the document set I will but i need to know either way. I have tried since October 1 before the motion to reconsider was late and itPacer simply wont take my multiple documents showing "fakePath: and it changing the drive automatically even though it just selected it somewhere else on my computer... This has made the 59e motion that i had to fule a place holder in the remanded case, and not accepted apparently.is what it is. But i need thwe notice of appeal to process... so please let me know if i need to drive to portland and submit these documents. Thank you.) (Lofall, Tyler) (Entered: 10/16/2025)
10/28/2025	68	Alternative Corporate Disclosure Statement *to both the Order/show cause and*. Filed by Tyler Allen Lofall. (Lofall, Tyler) (Entered: 10/28/2025)

PACER Service Center			
Transaction Receipt			
11/01/2025 12:48:55			
PACER Login:	tylerlofall	**Client Code:**	
Description:	Docket Report	**Search Criteria:**	3:24-cv-00839-SB Start date: 1/1/1980 End date: 11/3/2025
Billable Pages:	9	**Cost:**	0.90